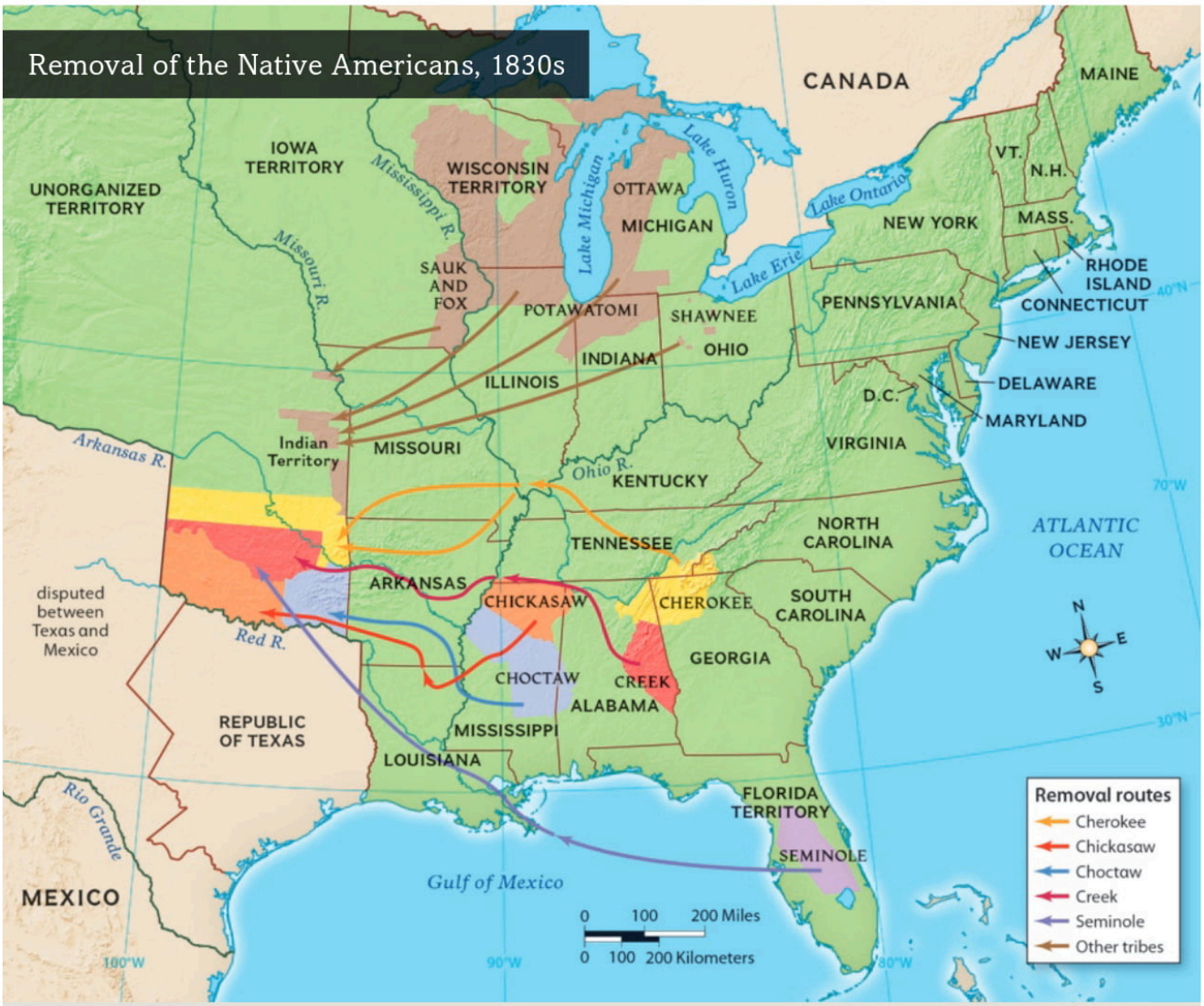
2.3 The Trail of Tears

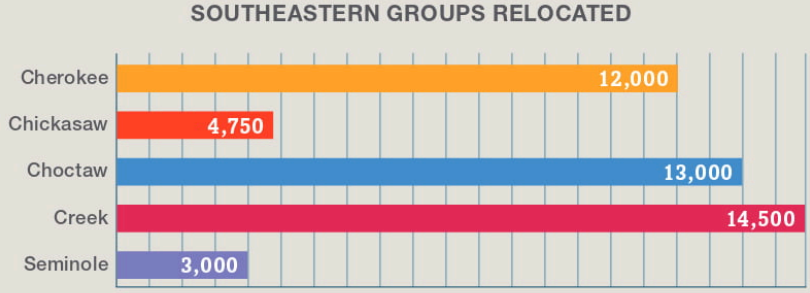
When people believe a policy is unfair or unconstitutional, they can take it to the highest court in the land. You would think that everyone would have to abide by a Supreme Court ruling, right?

MAIN IDEA In defiance of a ruling from the Supreme Court, Andrew Jackson forced the Cherokee to relocate to Indian Territory.



Native American Relocation

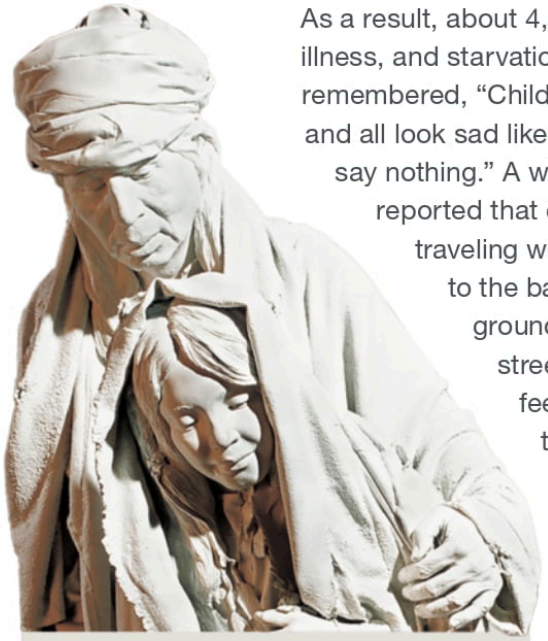
The map shows the routes taken by various Native American groups and the destination of each one in Indian Territory. The bar graph, which is color-coded with the routes taken by the groups, indicates the numbers of people migrating along those routes.



Copyright 2025 Cengage Learning. All Rights Reserved. May not be copied, scanned, or duplicated, in whole or in part. Due to electronic rights, some third party content may be suppressed from the eBook and/or eChapter(s). Editorial review has deemed that any suppressed content does not materially affect the overall learning experience. Cengage Learning reserves the right to remove additional content at any time if subsequent rights restrictions require it.

ONE LAST STAND

In an 1823 decision, *Johnson* v. *M'Intosh*, the Supreme Court had offered some protection for Native American lands. So, in 1832, the Cherokee turned to the Supreme Court to seek legal means to stay on their land. The Court ruled in their favor, determining that the Indian Removal Act was unconstitutional and that it violated previous treaties with the Cherokee. But the state of Georgia and President Andrew Jackson opposed the Supreme Court's decision. They wanted the Cherokee to go.



Trail of Tears Sculpture
This sculpture from the Trail of Tears exhibit at the Cherokee Heritage Center in Tahlequah, Oklahoma, represents a Cherokee couple on the forced march. The exhibit includes a gallery that focuses on how the Cherokee started over after their relocation.

A small group of Cherokee signed the treaty, deciding that doing so was their only hope. They soon left for Indian Territory. But most of the Cherokee—about 17,000 people—opposed the treaty and remained on their land. **John Ross**, the principal chief of the Cherokee, led the resistance and tried to negotiate a better treaty. However, Jackson wasn't willing to enter into negotiations. In 1838, he sent General **Winfield Scott** and 7,000 federal troops into Cherokee lands in Georgia and Alabama. The soldiers forced people from their homes and placed them in camps. White settlers then looted and destroyed the Cherokee villages, leaving the Native Americans with only the few possessions they had taken to the camps.

A GRUELING MARCH

After the Cherokee had been confined in the camps for months, American soldiers forced them on a march to Indian Territory. The terrible journey lasted about four months, during the fall and winter of 1838 and 1839. The Cherokee weren't given adequate food, shelter, or clothing as they struggled in the rain and snow. Some soldiers even stole the few supplies that had been provided for the Native Americans.

As a result, about 4,000 people died from cold, illness, and starvation on the march. One survivor remembered, "Children cry and many men cry, and all look sad like when friends die, but they say nothing." A witness to the forced migration reported that even old women "were traveling with heavy burdens attached to the back—on the sometimes frozen ground, and sometimes muddy streets, with no covering for the feet." Because of the suffering the Cherokee endured, the journey became known as the **Trail of Tears**.

To add to their burden, the soldiers made the Cherokee pay settlers for passing through their farms and boatmen for transporting them across rivers. By the time the Cherokee reached Indian Territory, they had little money left. They faced other challenges as well. Native Americans already living in the territory resented the newcomers. Not long after the Cherokee resettled, the Osage fought them over land. In addition, many Cherokee sought revenge against those of their tribe who had signed the treaty agreeing to move.

The Cherokee felt they had given up a part of their identity when they left their homeland. They had lost a spiritual connection to their ancestors, and they believed they had been betrayed by the U.S. government. Jackson's policies carried undertones of racial and political superiority and had a devastating impact on Native Americans.

HISTORICAL THINKING

1. **READING CHECK** What happened when some of the Cherokee resisted moving west?
2. **DESCRIBE** What challenges endured by Native Americans on the forced march to Indian Territory caused the journey to be known as the Trail of Tears?
3. **INTERPRET MAPS** Which southeastern Native American tribe traveled the farthest?

Copyright 2025 Cengage Learning. All Rights Reserved. May not be copied, scanned, or duplicated, in whole or in part. Due to electronic rights, some third party content may be suppressed from the eBook and/or eChapter(s).
Editorial review has deemed that any suppressed content does not materially affect the overall learning experience. Cengage Learning reserves the right to remove additional content at any time if subsequent rights restrictions require it.